



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session

Majority Research Staff

HB 2240: tuition waiver; children; veterans; disabilities

BLACKMAN FLOOR AMENDMENT

1. Deletes the requirement that the Arizona Board of Regents (ABOR) and a community college district provide the eligible child or dependent of a member or former member of the United States Armed Forces a tuition waiver scholarship as prescribed.
2. Establishes the Dependents of Military Personnel Tuition Scholarship Fund (Fund) that is administered by ABOR and authorizes ABOR to provide a tuition scholarship to the eligible child or dependent of a member or former member of the United States Armed Forces as specified.
3. Appropriates \$15,000,000 from the state General Fund in FY 2027 to the Fund.
4. Specifies requirements relating to Fund monies.
5. Requires ABOR, subject to available monies, to use Fund monies to award tuition scholarships on a first-come, first-served basis to any individual who:
 - a. is the child or dependent of a member or former member of the United States Armed Forces who:
 - i. has a disability rating of at least 30%; and
 - ii. is either an Arizona resident or was stationed in Arizona at the time of the injury that resulted in the disability rating;
 - b. provides documentation verifying they meet the eligibility requirements;
 - c. is enrolled full-time at an Arizona public university or community college;
 - d. completed and submitted the Free Application for Federal Student Aid;
 - e. is an Arizona resident;
 - f. has not been convicted of a felony; and
 - g. has not obtained a total number of postsecondary education credits that meets or exceeds the number of credits required for baccalaureate degree for the individual's initially declared course of study.
6. Prohibits ABOR from awarding a tuition scholarship:
 - a. to any individual for more than four academic years or eight semesters; and
 - b. if there are insufficient Fund monies, awarding a tuition scholarship to an eligible individual.
7. Caps a tuition scholarship at the actual cost of in-state tuition and fees minus other financial gifts, grants or aid.

BLACKMAN FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2240
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[~~GREEN STRIKEOUT IN BRACKETS~~] indicates new text removed from statute or previously enacted session law.

[~~Green strikeout in brackets~~] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<~~Green strikeout in carets~~>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 15-1808, Arizona Revised Statutes, is amended to
3 read:

4 15-1808. Tuition waiver scholarships; eligibility;
5 definitions

6 A. The Arizona board of regents, after verification by the Arizona
7 peace officers memorial board, by the Arizona fallen firefighter memorial
8 committee, by the adjutant general of the national guard or by the Arizona
9 department of veterans' services that a person is a child or the spouse of
10 a peace officer, correctional officer, firefighter, emergency paramedic,
11 national guard member or member of the United States armed forces who was
12 a resident of the state of Arizona or stationed in Arizona and who was
13 killed in the line of duty or who died from injuries suffered in the line
14 of duty while traveling to or from duty, shall provide the person who
15 qualifies under subsection D of this section and who otherwise meets the
16 qualifications for admission with a tuition waiver scholarship at any
17 university under the jurisdiction of the Arizona board of regents. A
18 district as defined in section 15-1401, after verification by the Arizona
19 peace officers memorial board, by the Arizona fallen firefighter memorial
20 committee, by the adjutant general of the national guard or by the Arizona
21 department of veterans' services that a person is the child or the spouse
22 of a peace officer, correctional officer, firefighter, emergency
23 paramedic, national guard member or member of the United States armed
24 forces who was a resident of Arizona or stationed in Arizona and who was
25 killed in the line of duty or who died from injuries suffered in the line
26 of duty while traveling to or from duty, shall provide the person who
27 qualifies under subsection D of this section and who otherwise meets the

1 qualifications for admission with a tuition waiver scholarship at any
2 community college under the jurisdiction of the district.

3 B. The Arizona board of regents, after verification by the Arizona
4 peace officers memorial board, the Arizona fallen firefighter memorial
5 committee or the department of veterans' services that a person is a child
6 or the spouse of a person who meets the requirements prescribed in
7 subsection C of this section, shall provide the person who qualifies under
8 subsection D of this section and who otherwise meets the qualifications
9 for admission with a tuition waiver scholarship at any university under
10 the jurisdiction of the Arizona board of regents. A district as defined
11 in section 15-1401, after verification by the Arizona peace officers
12 memorial board, the Arizona fallen firefighter memorial committee or the
13 department of veterans' services that a person is a child or the spouse of
14 a person who meets the requirements prescribed in subsection C of this
15 section, shall provide the person who qualifies under subsection D of this
16 section and who otherwise meets the qualifications for admission with a
17 tuition waiver scholarship at any community college under the jurisdiction
18 of the district. Notwithstanding section 15-1809, if sufficient monies
19 are available, the Arizona board of regents shall distribute surplus
20 monies that were appropriated to the spouses of military veterans tuition
21 scholarship fund established by section 15-1809 to each university under
22 the jurisdiction of the Arizona board of regents for the costs associated
23 with the tuition waiver scholarships provided pursuant to this subsection.

24 C. To be eligible for a tuition waiver scholarship under subsection
25 B of this section, the applicant must be the child or spouse of a person
26 who meets all of the following criteria:

27 1. Was a veteran of the United States armed forces or was serving
28 or previously served as a peace officer, a firefighter or a member of the
29 United States armed forces at the time of the person's death. It is not a
30 requirement for the purposes of this paragraph that the person was
31 employed as a peace officer or firefighter or was serving on active duty
32 as a member of the United States armed forces at the time of the person's
33 death.

34 2. Was a resident of this state at the time of the person's death.

35 3. Suffered a post-traumatic stress injury in the line of duty.
36 Documentation that the peace officer or firefighter at any point received
37 a disability pension under section 38-844 for a post-traumatic stress
38 injury or benefits under title 38, chapter 5, article 4.2 for a
39 post-traumatic stress injury is prima facie evidence that the peace
40 officer or firefighter met the requirements of this paragraph. A
41 discharge or other document from the United States armed forces showing
42 that the member or veteran of the United States armed forces was
43 discharged because of or suffered from a post-traumatic stress injury, or
44 documentation from the United States department of veterans affairs
45 showing that the member or veteran suffered from a post-traumatic stress
46 injury, is prima facie evidence that the member or veteran met the
47 requirements of this paragraph.

1 4. Died by suicide.

2 D. The tuition waiver scholarships shall be limited to children who
3 are thirty years of age or younger or a spouse who has not remarried and
4 shall be limited for a spouse or for any one child to not more than
5 sixty-four credit hours at Arizona community colleges and a total number
6 of credits including any transfer credits from an Arizona community
7 college equal to the number of credits required for a baccalaureate degree
8 at Arizona universities for that student's initially declared course of
9 study.

10 E. A member of the Arizona national guard who received a purple
11 heart citation on or after September 11, 2001 or a former member of the
12 Arizona national guard who was medically discharged from the Arizona
13 national guard due to an injury or disability suffered during status under
14 title 10, United States Code, in weekend training status, in annual
15 training status or in response to a state of emergency declared by the
16 governor is eligible for a tuition waiver scholarship provided for in this
17 section.

18 F. The Arizona board of regents, after verification by the Arizona
19 department of veterans' services that a person is a member or former
20 member of the United States armed forces who received a purple heart
21 citation, who was a resident of the state of Arizona or was stationed in
22 Arizona at the time of the injury that resulted in the purple heart
23 citation and whose disability rating determined by the United States
24 department of veterans affairs is fifty percent or more, shall provide the
25 person who otherwise meets the qualifications for admission with a tuition
26 waiver scholarship at any university under the jurisdiction of the board.
27 A district as defined in section 15-1401, after verification by the
28 Arizona department of veterans' services that a person is a member or
29 former member of the United States armed forces who received a purple
30 heart citation, who was a resident of the state of Arizona or was
31 stationed in Arizona at the time of the injury that resulted in the purple
32 heart citation and whose disability rating determined by the United States
33 department of veterans affairs is fifty percent or more, shall provide the
34 person who otherwise meets the qualifications for admission with a tuition
35 waiver scholarship at any community college under the jurisdiction of the
36 district. A person who is convicted of a class 1, 2, 3, 4 or 5 felony is
37 ineligible for a tuition waiver scholarship as provided in this
38 subsection.

39 G. [IN ADDITION TO THE TUITION WAIVER SCHOLARSHIPS PROVIDED
40 PURSUANT TO THIS SECTION,] THE ARIZONA BOARD OF REGENTS[~~—AFTER~~
41 ~~VERIFICATION BY THE ARIZONA DEPARTMENT OF VETERANS' SERVICES THAT A PERSON~~
42 ~~IS~~] [MAY PROVIDE A TUITION SCHOLARSHIP TO] A CHILD OR A DEPENDENT OF A
43 MEMBER OR A FORMER MEMBER OF THE [ARMED FORCES OF THE] UNITED STATES
44 ~~[ARMED FORCES]~~ WHOSE DISABILITY RATING DETERMINED BY THE UNITED STATES
45 DEPARTMENT OF VETERANS AFFAIRS IS THIRTY PERCENT OR MORE AND WHO IS A
46 RESIDENT OF THIS STATE OR WAS STATIONED IN THIS STATE AT THE TIME OF THE
47 INJURY THAT RESULTED IN THE DISABILITY RATING, [~~SHALL PROVIDE THE CHILD OR~~

~~1 DEPENDENT WITH A TUITION WAIVER SCHOLARSHIP AT ANY UNIVERSITY UNDER THE
2 JURISDICTION OF THE ARIZONA BOARD OF REGENTS. A COMMUNITY COLLEGE
3 DISTRICT AS DEFINED IN SECTION 15-1401, AFTER VERIFICATION BY THE ARIZONA
4 DEPARTMENT OF VETERANS' SERVICES THAT A PERSON IS A CHILD OR A DEPENDENT
5 OF A MEMBER OR A FORMER MEMBER OF THE UNITED STATES ARMED FORCES WHOSE
6 DISABILITY RATING DETERMINED BY THE UNITED STATES DEPARTMENT OF VETERANS
7 AFFAIRS IS THIRTY PERCENT OR MORE AND WHO IS A RESIDENT OF THIS STATE OR
8 WAS STATIONED IN THIS STATE AT THE TIME OF THE INJURY THAT RESULTED IN THE
9 DISABILITY RATING, SHALL PROVIDE THE CHILD OR DEPENDENT WITH A TUITION
10 WAIVER SCHOLARSHIP AT ANY COMMUNITY COLLEGE UNDER THE JURISDICTION OF THE
11 COMMUNITY COLLEGE DISTRICT. A CHILD OR DEPENDENT IS ELIGIBLE FOR A
12 TUITION WAIVER SCHOLARSHIP PURSUANT OF THIS SUBSECTION ONLY IF THE CHILD
13 OR DEPENDENT MEETS ALL OF THE FOLLOWING REQUIREMENTS:~~

- ~~14 1. IS THIRTY YEARS OF AGE OR YOUNGER.~~
- ~~15 2. HAS NOT BEEN CONVICTED OF A FELONY.~~
- ~~16 3. MEETS THE QUALIFICATIONS FOR ADMISSION AT THE UNIVERSITY OR
17 COMMUNITY COLLEGE.~~
- ~~18 4. HAS NOT OBTAINED MORE THAN SIXTY-FOUR CREDIT HOURS AT COMMUNITY
19 COLLEGES IN THIS STATE.~~
- ~~20 5. HAS NOT OBTAINED A TOTAL NUMBER OF POSTSECONDARY EDUCATION
21 CREDITS, INCLUDING ANY TRANSFER CREDITS FROM A COMMUNITY COLLEGE IN THIS
22 STATE, THAT IS EQUAL TO THE NUMBER OF CREDITS REQUIRED FOR A BACCALAUREATE
23 DEGREE AT A UNIVERSITY UNDER THE JURISDICTION OF THE ARIZONA BOARD OF
24 REGENTS FOR THE CHILD'S OR DEPENDENT'S INITIALLY DECLARED COURSE OF STUDY]
25 [SUBJECT TO THE REQUIREMENTS PRESCRIBED BY SECTION 15-1809.03].~~

~~26~~ **H.** For the purposes of this section:

~~27~~ 1. "Correctional officer" means a person, other than an elected
~~28~~ official, who is employed by this state or a county, city or town and who
~~29~~ is responsible for the supervision, protection, care, custody or control
~~30~~ of inmates in a state, county or municipal correctional institution,
~~31~~ including counselors but excluding secretarial, clerical and
~~32~~ professionally trained personnel.

~~33~~ 2. "Emergency paramedic" means a person who has been trained in an
~~34~~ emergency paramedic training program certified by the director of the
~~35~~ department of health services or in an equivalent training program and who
~~36~~ is certified by the director of the department of health services to
~~37~~ render services pursuant to section 36-2205.

~~38~~ 3. "Firefighter" means a professional firefighter who is a member
~~39~~ of a state, federal, tribal, city, county, district or private fire
~~40~~ department.

~~41~~ 4. "Peace officer" means a county sheriff, a constable, a marshal,
~~42~~ a police officer of a city or town, an individual who is commissioned by
~~43~~ the department of public safety and a police officer who is appointed by a
~~44~~ community college district governing board or the Arizona board of regents
~~45~~ who received a certificate from the Arizona peace officer standards and
~~46~~ training board, and any other state, federal, tribal, city or county

1 officer who is vested by law with a duty to maintain public order and make
2 arrests.

3 <<Sec. 2. Title 15, chapter 14, article 1, Arizona Revised
4 Statutes, is amended by adding section 15-1809.03, to read:

5 15-1809.03. Dependents of military personnel tuition
6 scholarship fund; eligibility; requirements

7 [A. THE DEPENDENTS OF MILITARY PERSONNEL TUITION SCHOLARSHIP FUND
8 IS ESTABLISHED CONSISTING OF LEGISLATIVE APPROPRIATIONS. THE ARIZONA
9 BOARD OF REGENTS SHALL ADMINISTER THE FUND. MONIES IN THE FUND ARE
10 CONTINUOUSLY APPROPRIATED AND ARE EXEMPT FROM THE PROVISIONS OF SECTION
11 35-190 RELATING TO LAPSING OF APPROPRIATIONS. ON NOTICE FROM THE ARIZONA
12 BOARD OF REGENTS, THE STATE TREASURER SHALL INVEST AND DIVEST MONIES IN
13 THE FUND AS PROVIDED BY SECTION 35-313, AND MONIES EARNED FROM INVESTMENT
14 SHALL BE CREDITED TO THE FUND. SUBJECT TO AVAILABLE MONIES, THE ARIZONA
15 BOARD OF REGENTS SHALL USE THE MONIES IN THE FUND TO AWARD TUITION
16 SCHOLARSHIPS ON A FIRST-COME, FIRST-SERVED BASIS TO ANY INDIVIDUAL WHO
17 MEETS ALL OF THE FOLLOWING REQUIREMENTS:

18 1. IS THE CHILD OR DEPENDENT OF A MEMBER OR A FORMER MEMBER OF THE
19 ARMED FORCES OF THE UNITED STATES WHO BOTH:

20 (a) IS DETERMINED BY THE UNITED STATES DEPARTMENT OF VETERANS
21 AFFAIRS TO HAVE A DISABILITY RATING OF AT LEAST THIRTY PERCENT.

22 (b) EITHER:

23 (i) IS A RESIDENT OF THIS STATE.

24 (ii) WAS STATIONED IN THIS STATE AT THE TIME OF THE INJURY THAT
25 RESULTED IN THE DISABILITY RATING.

26 2. PROVIDES TO THE ARIZONA BOARD OF REGENTS DOCUMENTATION FROM THE
27 DEPARTMENT OF VETERANS' SERVICES THAT VERIFIES THAT THE INDIVIDUAL MEETS
28 THE REQUIREMENTS PRESCRIBED BY PARAGRAPH 1 OF THIS SUBSECTION.

29 3. IS ENROLLED AS A FULL-TIME STUDENT IN EITHER:

30 (a) A UNIVERSITY UNDER THE JURISDICTION OF THE ARIZONA BOARD OF
31 REGENTS.

32 (b) A COMMUNITY COLLEGE AS DEFINED IN SECTION 15-1401.

33 4. COMPLETED AND SUBMITTED A FREE APPLICATION FOR FEDERAL STUDENT
34 AID BEFORE EACH YEAR IN WHICH THE INDIVIDUAL RECEIVES A TUITION
35 SCHOLARSHIP PURSUANT TO THIS SECTION.

36 5. IS A RESIDENT OF THIS STATE.

37 6. HAS NOT BEEN CONVICTED OF A FELONY.

38 7. HAS NOT OBTAINED MORE THAN A TOTAL OF SIXTY-FOUR CREDIT HOURS AT
39 COMMUNITY COLLEGES IN THIS STATE.

40 8. HAS NOT OBTAINED A TOTAL NUMBER OF POSTSECONDARY EDUCATION
41 CREDITS, INCLUDING TRANSFER CREDITS, THAT MEETS OR EXCEEDS THE NUMBER OF
42 CREDITS REQUIRED FOR A BACCALAUREATE DEGREE AT A UNIVERSITY UNDER THE
43 JURISDICTION OF THE ARIZONA BOARD OF REGENTS FOR THE INDIVIDUAL'S
44 INITIALLY DECLARED COURSE OF STUDY.

45 B. THE ARIZONA BOARD OF REGENTS:

46 1. MAY NOT AWARD A TUITION SCHOLARSHIP UNDER THIS SECTION TO ANY
47 INDIVIDUAL FOR MORE THAN FOUR ACADEMIC YEARS OR EIGHT SEMESTERS.

1 2. IF THERE ARE INSUFFICIENT MONIES IN THE FUND, MAY NOT AWARD A
2 TUITION SCHOLARSHIP TO AN INDIVIDUAL WHO IS ELIGIBLE PURSUANT TO THIS
3 SECTION.

4 3. MAY AWARD A TUITION SCHOLARSHIP TO AN INDIVIDUAL WHO IS ELIGIBLE
5 PURSUANT TO THIS SECTION IN AN AMOUNT THAT DOES NOT EXCEED THE
6 INDIVIDUAL'S ACTUAL COST OF IN-STATE TUITION AND FEES MINUS THE AMOUNT OF
7 ANY FEDERAL AID SCHOLARSHIPS, PUBLIC GRANTS OR OTHER FINANCIAL GIFTS,
8 GRANTS OR AID THAT THE INDIVIDUAL RECEIVES FOR THE SAME TERM.]>>

9 <<Sec. 3. Appropriation; dependents of military personnel
10 tuition scholarship fund

11 [The sum of \$15,000,000 is appropriated from the state general fund
12 in fiscal year 2026-2027 to the dependents of military personnel tuition
13 scholarship fund established by section 15-1809.03, Arizona Revised
14 Statutes, as added by this act.]>>

15 Enroll and engross to conform

16 Amend title to conform

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